

Vijay Singh v. State of U.P. (cl. 6.14 instalments)

High Court of Judicature at Allahabad · Division Bench · 18 December 2017 · WRIT - C No. - 60588 of 2017 · **Writ disposed; consider 6.14 instalment application if filed within two weeks.**

HEADNOTE

Writ seeking recovery of electricity dues in easy instalments disposed of. Clause 6.14 of the Electricity Supply Code, 2005 permits the licensee to extend an instalment facility to consumers in financial distress. The petitioner having made no prior request to the licensee, the Court directed that if an application under clause 6.14 is submitted within two weeks, it be considered sympathetically.

FACTUAL SUMMARY

Vijay Singh invoked the writ jurisdiction of the Allahabad High Court seeking a direction that the respondents recover his outstanding electricity consumption bill in easy instalments. Counsel appeared for the State and the distribution licensee. The Court recorded that clause 6.14 of the Electricity Supply Code permits the licensee to extend an instalment facility to consumers in financial distress, and that the petitioner had not, before approaching the Court, made any request to the licensee for that indulgence.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for financial distress

HOLDING

A consumer seeking recovery of electricity dues in easy instalments must first apply to the licensee under clause 6.14 of the Electricity Supply Code, 2005, which permits the licensee to extend that facility to consumers in financial distress. The writ was disposed of with a direction that if such an application is filed within two weeks, the licensee shall consider it sympathetically. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Writ seeking recovery of electricity dues in easy instalments disposed of. Clause 6.14 of the Electricity Supply Code, 2005 permits the licensee to extend an instalment facility to consumers in financial distress.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS IN FINANCIAL DISTRESS OR ENTITLED TO INSTALMENTS UNDER CLAUSE 6.14

Left to the licensee on a fresh application; no merits determination on the bill or the facility. ¶ 1